

4-5. 24CV04405 Solano, Eligio Leyva v. Gridley Packing, Inc

EVENT: (1) Final Approval of Class Action and PAGA Settlement

(2) Status Conference

Final Approval of Class Action and PAGA Settlement is GRANTED. A review hearing is scheduled for May 5, 2027 at 9:00am. A status report shall be filed no later than April 19, 2027. The Court will sign the proposed order with these modifications.

6-7. 25CV03148 Armour, Katie v. Chico Helathcare & Wellness

EVENT: (1) Defendant Chico Healthcare & Wellness Centre LP dba Oakwood Healthcare Center (former dba Riverside Point Healthcare & Wellness Centre) Motion to Compel Individual Arbitration, Strike Class Claims, and Dismiss the Proceedings

(2) Defendant Modern Hero Inc.'s Joinder to Co-Defendant Chico Healthcare & Wellness Centre, LP's Motion to Compel Individual Arbitration, Strike Class Claims, and Dismiss the Proceedings

The Court rules on the following evidentiary objections it deems material. Plaintiff's objection nos. 3 and 8: sustained. Defendants' evidentiary objections nos. 3-20: overruled.

Plaintiff does not dispute the existence of the arbitration agreements or that she signed the arbitration agreements. Rather she contends the agreements are unenforceable on unconscionability grounds. Defendants have provided evidence of two arbitration agreements signed by Plaintiff: the first signed in 2016 (hereinafter the 2016 agreement) during her initial onboarding, then a second arbitration agreement signed in 2018 (hereinafter the 2018 agreement) as part of another onboarding process. Notably, the language in both the 2016 and 2018 agreements are substantially identical.

Procedural Unconscionability

The Court agrees with Plaintiff that this is an adhesion contract, as most employment contracts are. The circumstances indicate lack of negotiation and lack of meaningful choice for Plaintiff. Whether an additional level of procedural unconscionability exists depends on whether there is an element of surprise.